

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$2,355.46.

Costs are \$300.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,627.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L24-05503
CASE NAME: TRUIST BANK, IN SUCCESSOR BY MERGER TO SUNTRUST BANK VS. MARIA QUILARIO
MOTION FOR ENTERING JUDGMENT PURSUANT TO DEF DEFAULT UNDER SETTLEMENT FILED BY
PLN ON 4/2/26
FILED BY: TRUIST BANK, IN SUCCESSOR BY MERGER TO SUNTRUST BANK

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation, along with a Declaration. The Motion and its supporting documents are timely.

This Motion is unopposed.

A Notice of Conditional Settlement was filed on 10/24/24, but no dismissal was ever filed with the court.

Analysis

Mail service was completed at an address where Defendant was personally served with process. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed on the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement, included in the Declaration, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$29,647.59, plus costs, less any credits for

payments received.

The Defendant made payments of \$1,200.

Costs are \$513.95. An accounting of the costs was included in the Declaration.

The court finds that since the case was never dismissed, there is no judgment to set aside.

Disposition

Plaintiff's Motion is granted in that Judgment will be entered (There was no judgment to set aside prior to today's ruling). Judgment will be entered in the amount of \$28,447.59.

Plaintiff to file order on Motion, as well as submit Judgment.

6. 9:00 AM CASE NUMBER: L25-00091

CASE NAME: WELLS FARGO BANK, NA VS. MARLIN THROWER

PLAINTIFF'S NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS;

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on the address for Defendant provided in the Answer.

The Motion is unopposed.

Background

On 4/7/26, the court granted Plaintiff's motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 12/8/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 12/8/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on